

Court No. - 39

Case :- WRIT - C No. - 1909 of 2017

Petitioner :- Devi Dayal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

The petitioner who claims to have been granted a connection under LMV-6 Category for running a Powerloom in the year 2012, is aggrieved by the office memorandum dated 12 July 2016. This office memorandum is based on the approval of the Divisional Waival Committee. The agreement dated 27 September 2012 executed by the petitioner has been terminated and revenue assessed after the date of disconnection to the extent of Rs.1,51,497/- has been waived as a result of which the petitioner has been asked to deposit an amount of Rs.2,46,127/-.

Though number of submissions have been made by learned counsel for the petitioner to assail the demand but learned counsel for the respondents has pointed out that clause 6.5 of the Electricity Supply Code, 2005 deals with disputed bills and arrears.

It is for the petitioner, in case he is so advised, to approach the Executive Engineer concerned. If such a representation is filed, the Court has no reason to doubt and as has also been pointed out by learned counsel appearing for the respondent-Corporation, that a decision shall be taken expeditiously.

The writ petition is, accordingly, disposed of with the aforesaid observations.

Order Date :- 16.1.2017

GS

(Dilip Gupta, J.)

(Siddhartha Varma, J.)